



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 29, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202204266 (Incident Date: June 29, 2022) regarding Police Officer Michael Delia, Tax No. 963953 (DADS No. 2023-29302)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegations against Police Officer Delia.

In this matter, CCRB substantiated three allegations against Officer Delia, including stopping and frisking an individual, and failing to provide that individual with a business card, all at the intersection of West 141 St and Malcolm X Blvd. As evidence in support of those substantiated allegations, CCRB provided a video which it states shows the officer making the stop, performing the frisk, and failing to provide the business card, at West 141 St and Malcolm X Blvd. However, despite CCRB alleging that the surveillance video showed the described occurrence, the Department's review of the provided surveillance video revealed that the video actually is from a different location, and could therefore not support the allegations which were substantiated by CCRB. Since the video, which was shown to Officer Delia when he was interviewed, was not taken at the location that CCRB investigators stated, it would have likely been misleading to the officer and been unreasonable to expect him to address questions about the incident shown in the video.

Therefore, based on the above, and the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Delia for the substantiated allegations.

Sincerely,

A handwritten signature in black ink, appearing to read 'A. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office